

**CHAPTER cxxvi.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Esk Valley Power-Gas. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Esk Valley Power-Gas Order Confirmation Act 1905. Short title.

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SCHEDULE.

ESK VALLEY POWER-GAS.

Provisional Order to incorporate and confer powers on the Esk Valley Power-Gas Company and for other purposes.

WHEREAS the erection of stations and works as herein-after provided and the manufacture and supply of power-gas for the purposes of motive power and heating but not of illumination within the area of supply herein-after defined would be of public and local advantage :

And whereas the persons in this Order named with others are willing at their own expense to construct such stations and works and undertake such manufacture and supply and it is expedient that they should be incorporated into a company (in this Order called "the Company") and that powers should be conferred on them for that purpose and for acquiring lands for the stations and works and generally for carrying out the objects and provisions of this Order :

And whereas plans describing the lands to be taken or used compulsorily for the purposes of this Order with a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands were duly deposited with the principal sheriff clerk of the county of Midlothian and are in this Order referred to as the deposited plans and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Esk Valley Power-Gas Order 1905 and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order."

2. This Order is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—General Purposes Lands &c.
- Part III.—Supply of Power-Gas.
- Part IV.—Capital.
- Part V.—Meetings and Appointment of Directors.
- Part VI.—Protective Provisions.
- Part VII.—Miscellaneous.

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Order
divided into
Parts.

PART I.

PRELIMINARY.

3. The following Acts or portions of Acts (as far as they are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Order) are incorporated with and form part of this Order (that is to say) :—

Incorporation of
general Acts.

The Companies Clauses Consolidation (Scotland) Act 1845 Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The Lands Clauses Acts :

The Gasworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the Undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the Undertakers and except any provisions which relate exclusively to the supply of gas for lighting purposes) and the Gasworks Clauses Act 1871 (except sections 11 and 12 and sections 24 to 33 and sections 35 and 36 and the schedules) :

Provided that notwithstanding anything contained in the Companies Clauses Consolidation (Scotland) Act 1845 a director of the Company may be interested or concerned in any contract with the Company and may participate in the profits of any work done for the Company in all respects as if he were not a director Nevertheless a director shall not be entitled to the benefit of this proviso unless he discloses to his co-directors the nature of his interest at the meeting of the directors at which such contract is determined upon if his interest then exists or in any other case at the first meeting of directors after the acquisition of his interest nor shall a director vote as such in respect of any contract in which he is interested and if he do so vote his vote shall not be counted.

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In the construction of the enactments so incorporated this Order is to be deemed "the special Act" and "the limits of the special Act" shall be the area in the county of Midlothian herein-after defined.

Interpreta-
tion.

4. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order—

"The Company" means the Company incorporated by this Order ;

"The undertaking" means the undertaking by this Order authorised ;

"The Electric Lighting Acts" means the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Clauses) Act 1899 ;

"Power-gas" means any gas suitable for the purposes of motive or other power heating or any other purpose to which such gas can be applied except illumination ;

"Local authority" means with respect to each part of the area of supply the council or other authority for that part responsible for the maintenance and repair of any street ;

"The sheriff" means the sheriff of the Lothians and Peebles ;

"Plan" means a plan drawn to a horizontal scale of at least one inch to eighty-eight feet or to the scale of the largest Ordnance Survey map published for the district and where possible a section drawn to the same horizontal scale as the plan and to a vertical scale of at least one inch to eleven feet or to such other scale as the Board of Trade may approve of for both plan and section together with such detail plan and sections as may be necessary ;

"Daily penalty" means a penalty for each day on which any offence is continued after conviction.

Company in-
corporated.

5. James Hunter Annandale The Right Honourable Ernest William Baron Grimthorpe Arthur Antony Baumann Alexander Cowan Malcolm Macnaughton Charles William Somerville William Leonard Tod William Nimmo Tod Frederick McDougal Williams and all other persons who have already subscribed to or shall

hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes herein-after mentioned and for those purposes shall be and are hereby incorporated by the name of "The Esk Valley Power-Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Order.

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6. The domicile of the Company with reference to all judicial proceedings or actions at law shall be and be deemed to be in Edinburgh.

Domicile of
Company.

PART II.

GENERAL PURPOSES LANDS &C.

7. The objects of the Company are within the area of supply herein-after defined to manufacture use supply sell and distribute power-gas and manufacture sell and deal in sulphate of ammonia and any bye-products or residuals of power-gas and to erect acquire lay down improve maintain use enlarge alter or discontinue the use of and sell let or otherwise dispose of any buildings works machinery pumps plant vessels producers retorts engines fittings mains pipes and other apparatus which may be necessary or useful for those purposes or any of them and to construct maintain and use service roads railways and sidings and acquire and work any patents or licences relating to the manufacture storage supply production measurement and distribution of power-gas or sell or grant licences to use the same and make and carry into effect contracts and agreements and generally do all such acts and things as may be necessary or useful for or incidental to the purposes aforesaid and the carrying into effect of the purposes of the Company.

General pur-
poses of
Company.

8.—(1) Before commencing the manufacture supply sale and distribution within the area of supply of power-gas the Company shall give notice to the Board of Trade together with information as to the nature of the power-gas proposed to be manufactured and supplied by them.

Board of
Trade
inquiry.

(2) Thereupon the Board of Trade may if they see fit appoint a competent and impartial person as referee to hold a public local inquiry in the area of supply and to report to the Board his opinion of the proposals of the Company.

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(3) The Company shall give such notice of the time and place of the local inquiry as may be required by the Board of Trade so that all local authorities within the area of supply and all persons interested may have an opportunity of being heard either for or against the proposals of the Company.

(4) The referee shall hear all such persons and shall report the effect of their evidence and his opinion thereon to the Board of Trade and the Board shall have power either to give (with or without modifications or additions) or to withhold their approval of the proposals of the Company and shall communicate their decision to the Company and to all local authorities appearing on the inquiry.

(5) The remuneration of the referee shall be fixed by the Board of Trade and shall as well as the expenses of all necessary notices and of providing a place for the inquiry be paid by the Company.

(6) If the Company shall at any time be desirous of manufacturing supplying selling and distributing within the area of supply any development of the power-gas supplied by them or any other power-gas the foregoing provisions of this section shall extend and apply thereto.

Power to
acquire lands
shown on
deposited
plans.

9. The Company may subject to the provisions of this Order enter upon take hold and use for the purposes of their undertaking compulsorily or by agreement all or any of the lands in the county of Midlothian shown on the deposited plans and described in the deposited book of reference except the lands numbered thirty-seven to forty-two (both inclusive) in the parish of Cockpen on such plans.

Gas lands.

10. The Company may on the lands described in the schedule to this Order or any portion thereof erect establish and maintain a station or stations for manufacturing power-gas and converting any materials or residual products arising from or in the process of the generation or manufacture of power-gas and for all or any of the purposes of this Order.

Storage and
distributing
works.

11. Subject to the provisions of this Order the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of power-gas and other mains producers tubes pipes meters fittings and other apparatus for producing transmitting storing measuring regulating and distributing power-gas for public and private purposes or for converting the same into

motive power heat or otherwise but not for illumination and any other machinery apparatus and appliances necessary or useful for any of the purposes of this Order.

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12. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county of Midlothian and a duplicate thereof shall also be deposited with the town clerk of the burgh or with the clerk of the parish council of the parish as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such principal sheriff clerk and town clerk and clerk of the parish council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands in accordance with such certificate.

Correction of errors &c. in deposited plans and book of reference.

13. The Company may subject to the provisions of this Order enter upon pass over and use at all times the roads in this section after mentioned and may lay down maintain use repair remove and inspect mains pipes and other apparatus conveniences and appliances in under over and along such roads and also in under and over the railways after mentioned viz. :—

Power to lay mains and acquire servitudes.

In the parish of Lasswade—

- (1) The railway siding from the North British Railway (Polton Branch Line) at Polton Station where it crosses on the level the road leading from Hawthornden to Loanhead including the solum under the railway ;
- (2) The North British Railway (Edinburgh Loanhead and Roslin Branch) at or near the point where it is joined by the Loanhead Colliery siding ;
- (3) So much of the road leading from Niven's Knowe Road to Loanhead Colliery as lies between the

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junction of Niven's Knowe Road and the road known as The Loan and the southern boundary of the lands described under the heading "Burghlee Site" in the schedule to this Order;

(4) So much of the road leading from Roslynlee Station to Rosewell as lies between the east side of the plantation immediately to the west of Whitehill Collieries and the lands described under the heading "Whitehill Site" in the schedule to this Order;

(5) The road leading from Kirkettle Farmhouse past Holenbank Cottage till it has crossed the road leading from Firth Mains to Firth Mansion House:

In the parish of Glencorse—

(6) The North British Railway Glencorse Extension of the Edinburgh Loanhead and Roslin Branch where it crosses on the level at the Penicuik Gasworks the road leading from Ladywood past Eastfield to Esk Bridge including the solum under the railway;

(7) The North British Railway Penicuik Branch where it crosses on the level the road leading into Dalmore Mills including the solum under the railway:

And the Company may break up the surface of the said roads railway level crossings and lands for all or any of the purposes aforesaid Provided that the Company shall make to the owners lessees and occupiers and other parties having any estate or interest in such lands compensation for the right or servitude of laying down and maintaining such mains pipes and other apparatus as herein-before described and may give notice to treat in respect of such right or servitude and the provisions of the Lands Clauses Acts inclusive of those with regard to arbitration and the summoning of a jury shall apply to the purchase of such right or servitude as if such purchase were a purchase of land within the meaning of such Acts.

Servitudes
by agree-
ment.

14. The Company may acquire by agreement servitudes over and under lands and property belonging to any company body or person and may exercise any of the powers by this Order conferred on the Company with respect to the placing of pipes and mains in or over such lands and property.

Persons
may dis-
charge
servi-
&c.

15. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any

servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands feu duties and ground annuals and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

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16. In addition to the other lands which the Company are by this Order authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of their undertaking any lands not exceeding fifty acres but nothing in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any such lands or authorise the Company to erect any station for manufacturing or converting power-gas or any residual product upon any lands acquired under this Order other than on the lands described in the schedule to this Order.

Purchase of
lands by
agreement.

17. The powers of the Company for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of five years from the commencement of this Order.

Period for
compulsory
purchase of
lands.

18. The Company shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied :

Restriction
on taking
houses of
labouring
class.

If the Company acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty :

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers

A.D. 1905. and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Power to lay
down pipes
for water &c.

19.—(1) It shall be lawful for the Company within the area of supply to lay down maintain repair alter and use pipes for conveying water and any materials matters or things used by them in or resulting from the process of manufacturing power-gas to or from any manufacturing station of the Company and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as applicable extend and apply to the laying down repairing altering or removing of pipes for such purposes.

(2) Where any pipe to be laid by the Company under the powers of this section crosses over or under or is situate within three feet of any mains pipes or other works of any company or authority supplying water or gas the same shall be laid down under the superintendence and to the reasonable satisfaction of the engineer of that company or authority as the case may be.

(3) The powers conferred upon the Company by this section shall not be exerciseable without the consent in writing of the local or other authority liable to make maintain and repair the roads and streets along which the Company propose to lay such pipes and any such consent may be given subject to such conditions as the said local or other authority may deem it advisable to attach thereto and shall apply only to each application of the Company such consent not to be unreasonably withheld and if any question arises as to whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade.

Power to lay
mains and
pipes and to
open up
streets.

20. Subject to the provisions and restrictions of this Order and of the Acts incorporated herewith the Company may lay place maintain alter and remove mains pipes and other apparatus connected with the supply of power-gas in or under any street and any railway tramway or canal when and where such railway tramway or canal crosses any street within the area of supply and may (so far as necessary for the purpose of this section) open break up and interfere with any such street railway tramway or canal or any sewer or drain or any gas or water mains or pipes or any electric pneumatic or other wires lines tubes pipes or apparatus :

Provided that nothing in this Order shall extend to or authorise any interference with any works of any Undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section :

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Provided also that the Company shall not in any way interfere with any electric pneumatic or other wires lines tubes pipes or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

21. The Company may give to any local authority or company owning or controlling any sewer drain watercourse gas or water mains or pipes or any electric pneumatic or other wires lines tubes pipes or apparatus in or under any street within the area of supply in or under which the Company may desire to lay or place mains pipes or apparatus written notice requiring such local authority or company to produce for the inspection of the Company by their authorised officer any plans and sections in their possession showing the situation of every such sewer drain watercourse gas or water main or pipes wires lines tubes and apparatus as may belong to or be controlled by them respectively and every such local authority or company shall comply with the notice within ten days from the date thereof and the Company by such officer may take copies of such plans and sections All expenses properly incurred by any such local authority or company under this section shall be paid by the Company.

Provision for inspection by Company of plans of sewers mains pipes &c.

22. Where the exercise of any of the powers of the Company in relation to the execution of any works will involve the placing of any works in under along or across any street repairable by the local authority or any bridge carrying the same the following provisions shall have effect:—

Notice of works with plan to be served on local authority.

- (A) One month before commencing the execution of the works (not being repairs renewals or amendments of existing works of which the character and position are not altered) the Company shall serve a notice on the local authority describing the proposed works together with a plan of the works showing the mode and position in which the works are intended to be executed and the manner in which it is intended that the street or bridge or any sewer drain or tunnel therein or thereunder is to be interfered with and shall upon being required to do

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so by the local authority give them any such further information in relation thereto as they desire ;

No part of the month of August shall be included in calculating the above-mentioned period of one month :

- (B) The local authority may in their discretion approve any such works or plan subject to such amendments or conditions as may seem fit or may disapprove them and may give notice of that approval or disapproval to the Company :
- (C) Where the local authority approve any such works or plan subject to any amendments or conditions with which the Company are dissatisfied or disapprove any such works or plan the Company may appeal to the Board of Trade and the Board of Trade may inquire into the matter and allow or disallow the appeal and may approve any such works or plan subject to such amendments or conditions as seem fit or may disapprove them :
- (D) If the local authority fail to give any such notice of approval or disapproval to the Company within one month after the service of the notice upon them they shall be deemed to have approved the works and plan :
- (E) Notwithstanding anything in this Order the Company shall not be entitled to execute any such works as above specified except so far as they may be of a description and in accordance with a plan which has been approved or is to be deemed to have been approved by the local authority or by the Board of Trade as above mentioned but where any such works description and plan are so approved or to be deemed to be approved the Company may cause those works to be executed in accordance with the description and plan subject in all respects to the provisions of this Order :
- (F) If the Company make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this Order) make full compensation to the local authority for any loss or damage which they may incur by reason thereof and in addition thereto they shall be liable for

each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds Provided that the Company shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable under the circumstances.

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23. Where the exercise of the powers of the Company will involve the placing of any works in under along or across any street or part of a street not repairable by the local authority and any bridge carrying the same or over or under any railway tramway or canal the following provisions unless otherwise agreed between the parties interested shall have effect (that is to say):—

As to streets not repairable by local authority railways tramways and canals.

- (A) One month before commencing the execution of the works (not being repairs renewals or amendments of existing works of which the character and position are not altered) the Company shall serve a notice on the body or person if any liable to repair the street or bridge or part of a street or bridge or the body or person for the time being entitled to work the railway or tramway or the owners of the canal (as the case may be) in this section referred to as "the owners" describing the proposed works together with a plan of the works showing the mode and position in which the works are intended to be executed and placed and shall upon being required to do so by any such owners give them any such further information in relation thereto as they desire :
- (B) Every such notice shall contain a reference to this section and direct the attention of the owners to whom it is given to the provisions thereof :
- (C) Within three weeks after the service of any such notice and plan on any owners those owners may if they think fit serve a requisition upon the Company requiring that any question in relation to the works or to compensation in respect thereof and any other question arising upon the notice or plan shall be settled by arbitration and thereupon that question unless settled by agreement shall be determined by arbitration accordingly :
- (D) In settling any question under this section an arbiter shall have regard to any duties or obligations which the

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owners may be under in respect of the street railway tramway or canal and may if he thinks fit require the Company to execute any temporary or other works so as to avoid any interference with any traffic so far as may be possible :

- (E) Where no such requisition as aforesaid is served on the Company or where after any such requisition has been served on them any question required to be settled by arbitration has been so settled the Company may upon paying or securing any compensation which they may be required to pay or secure cause to be executed the works specified in such notice and plan as aforesaid and may repair renew and amend them (provided that their character and position are not altered) but subject in all respects to the provisions of this Order and only in accordance with the notice and plan so served by them as aforesaid or such modifications thereof respectively as may have been determined by arbitration as herein-before mentioned or as may be agreed between the parties :
- (F) All works to be executed by the Company under this section shall be carried out to the reasonable satisfaction of the owners and those owners shall have the right to be present during the execution of the works :
- (G) When the repair renewal or amendment of any existing works of which the character or position is not altered will involve any interference with any railway or with any tramway over or under which those works have been placed the Company shall unless it is otherwise agreed between the parties or in cases of emergency give to the owners not less than twenty-four hours' notice before commencing to effect the repair renewal or amendment and the owners shall be entitled by their officer to superintend the works the reasonable cost of such superintendence to be paid by the Company to the owners and the Company shall conform to such reasonable requirements as may be made by the owners or that officer :
- (H) If the Company make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this

Order) make full compensation to the owners affected thereby for any loss or damage which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds Provided that the Company shall not be liable to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable in the circumstances.

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24. Any local authority body or person for the time being liable to repair any street or part of a street or entitled to work any railway or tramway which the Company are empowered to break up for the purposes of this Order may if they think fit serve a notice on the Company stating that they desire to exercise or discharge all or any part of any of the powers and duties of the Company as therein specified in relation to the breaking up filling in reinstating or making good any streets bridges sewers drains tunnels or other works vested in or under the control or management of that local authority body or person and may amend or revoke any such notice by another notice similarly served.

Street authority &c. may give notice of desire to break up streets &c. on behalf of Company.

Where any such local authority body or person (in this section referred to as "the givers of the notice") have given notice that they desire to exercise or discharge any such specified powers and duties of the Company then so long as that notice remains in force the following provisions shall have effect unless it is otherwise agreed between the parties interested:—

(A) The Company shall not be entitled to proceed themselves to exercise or discharge any such specified powers or duties as aforesaid except where they have required the givers of the notice to exercise or discharge those powers or duties and the givers of the notice have refused or neglected to comply with that requisition as herein-after provided or in cases of emergency :

(B) In addition to any other notices which they are required to give under the provisions of this Order the Company shall not more than four days and not less than two days before the exercise or discharge of any such powers or duties so specified as aforesaid is required to be commenced serve a requisition on the givers of the notice stating the time when that exercise or discharge

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is required to be commenced and the manner in which any such powers or duties are required to be exercised or discharged :

- (c) Upon receipt of any such requisition as last aforesaid the givers of the notice may proceed to exercise or discharge any such powers or duties as required by the Company subject to the like restrictions and conditions so far as they are applicable as the Company would themselves be subject to in that exercise or discharge :
- (d) If the givers of the notice decline or for twenty-four hours after the time when any such exercise or discharge of any powers or duties is by any requisition required to be commenced neglect to comply with the requisition the Company may themselves proceed to exercise or discharge the powers or duties therein specified in like manner as they might have done if such notice as aforesaid had not been given to them by the givers of the notice :
- (e) In any case of emergency the Company may themselves proceed at once to exercise or discharge so much of any such specified powers or duties as aforesaid as may be necessary for the actual remedying of any defect from which the emergency arises without serving any requisition on the givers of the notice but in that case the Company shall within twelve hours after they begin to exercise or discharge such powers or duties as aforesaid give information thereof in writing to the givers of the notice :
- (f) If the Company exercise or discharge any such specified powers or duties as aforesaid otherwise than in accordance with the provisions of this section they shall be liable for each offence to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds Provided that the Company shall not be subject to any such penalties as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable in the circumstances :
- (g) All expenses properly incurred by the givers of the notice in complying with any requisition of the Company

under this section shall be repaid to them by the Company and may be recovered summarily : A.D. 1905.

- (H) The givers of the notice may if they think fit require the Company to give them such security for the repayment to them of any expenses to be incurred by them under this section as may be agreed upon between them and the Company or in default of agreement as may be determined by arbitration. If the Company fail to give any such security within seven days after being required so to do or in case of difference after the delivery of the arbiter's award they shall not be entitled to serve any further requisition upon the givers of the notice requiring them to exercise or discharge any powers or duties under this section until such security has been duly given :

Provided that nothing in this section shall in any way affect the rights of the Company to exercise or discharge any powers or duties conferred or imposed upon them by this Order in relation to the execution of any works beyond the actual breaking up filling in reinstating or making good any such street or part of a street or any such bridges sewers drains tunnels or other works or railway or tramway as in this section mentioned.

25. The Company may alter the position of any mains pipes wires or apparatus being under any street or place authorised to be broken up by them which may interfere with the exercise of their powers under this Order and any local authority body or person may in like manner alter the position of any mains or pipes of the Company being under any such street or place as aforesaid which may interfere with the lawful exercise of any powers vested in that local authority body or person in relation to that street or place subject to the following provisions unless it is otherwise agreed between the parties interested :—

As to alteration of pipes wires &c. under streets.

- (A) One month before commencing any such alteration the Company or the local authority body or person (as the case may be) in this section referred to as "the operators" shall serve a notice on the local authority body or person for the time being entitled to the mains pipes wires or apparatus (as the case may be) in this section referred to as "the owners" describing the proposed alterations together with a plan showing the manner in which it is intended that the alterations shall

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be made and shall upon being required to do so by any such owners give them any such further information in relation thereto as they may desire :

- (B) Within three weeks after the service of any such notice and plan on any owners those owners may if they think fit serve a requisition on the operators requiring that any question in relation to the works or to compensation in respect thereof or any other question arising on such notice or plan as aforesaid shall be settled by arbitration and thereupon that question unless settled by agreement shall be determined by arbitration accordingly :
- (C) In settling any question under this section an arbiter shall have regard to any duties or obligations which the owners may be under in respect of the mains pipes wires or apparatus and may if he thinks fit require the operators to execute any temporary or other works so as to avoid interference with any purpose for which the mains pipes wires or apparatus are used so far as possible :
- (D) Where no such requisition as in this section mentioned is served on the operators the owners shall be held to have agreed to the notice and plan served on them as aforesaid and in that case or where after any such requisition has been served on them any question required to be settled by arbitration has been so settled the operators on paying or securing any compensation which they may be required to pay or secure may cause the alterations specified in such notice and plan as aforesaid to be made but subject in all respects to the provisions of this Order and only in accordance with the notice and plan so served by them as aforesaid or such modification thereof respectively as may have been determined by arbitration as herein-before mentioned or as may be agreed between the parties :
- (E) At any time before any operators are entitled to commence any such alterations as aforesaid the owners may serve a statement on the operators stating that they desire to execute the alterations themselves and where any such statement has been served on the operators they shall not be entitled to proceed themselves to execute the alterations except where they have notified to the owners that they require them to execute the alterations

and the owners have refused or neglected to comply with the notification as herein-after provided : A.D. 1905.

- (F) Where any such statement as last aforesaid has been served on the operators they shall not more than forty-eight hours and not less than twenty-four hours before the execution of the alterations is required to be commenced serve a notice on the owners stating the time when the alterations are required to be commenced and the manner in which the alterations are required to be made :
- (G) Upon receipt of any such notice as last aforesaid the owners may proceed to execute the alterations as required by the operators subject to the like restrictions and conditions so far as they are applicable as the operators would themselves be subject to in executing the alterations :
- (H) If the owners decline or for twenty-four hours after the time when any such alterations are required to be commenced neglect to comply with the notice the operators may themselves proceed to execute the alterations in like manner as they might have done if no such statement as aforesaid had been served upon them :
- (I) All expenses properly incurred by any owners in complying with any such notice of any operators under this section shall be repaid to them by the operators and may be recovered summarily :
- (J) Any owners may if they think fit by any statement served by them upon the operators under this section require the operators to give them such security for the repayment to them of any expenses to be incurred by them in executing any alterations as above mentioned as may be agreed upon between such owners and operators or in default of agreement as may be determined by arbitration and where any operators have been so required to give security they shall not be entitled to serve a notice upon the owners requiring them to execute such alterations until such security has been duly given :
- (K) If the operators make default in complying with any of the requirements or restrictions of this section they shall (in addition to any other compensation which they may be liable to make under the provisions of this

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Order) make full compensation to the owners affected thereby for any loss damage or penalty which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds:

Provided that the operators shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the operators complied with the requirements of this section so far as was reasonable under the circumstances.

Laying of
mains near
sewers &c.
or gas or
water pipes
or electric
lines.

26.—(1) Where the Company require to dig or sink any trench for laying down or constructing any new gas mains (other than service pipes) or other works near to which any sewer drain watercourse defence or work under the jurisdiction or control of any local authority or any main pipe syphon electric line or other work belonging to any gas electric supply electric tramway or water company has been lawfully placed or where any gas electric supply electric tramway or water company require to dig or sink any trench for laying down or constructing any new mains or pipes (other than service pipes) or other works near to which any mains or pipes of the Company have been lawfully placed the Company or the gas electric supply electric tramway or water company (as the case may be) in this section referred to as "the operators" shall unless it is otherwise agreed between the parties interested or in the case of sudden emergency give to the local authority or to the gas electric supply electric tramway or water company or to the Company as the case may be (in this section referred to as "the owners") not less than fourteen days' notice before commencing to dig or sink such trench as aforesaid and those owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or the officer for protecting from injury every such sewer drain watercourse defence main pipe syphon electric line or work and for securing access thereto and they shall also if required by the owners thereof repair any damage that may be done thereto.

(2) Where the operators find it necessary to undermine but not alter the position of any main pipe electric line or work they shall temporarily support it in position during the execution of their works and before completion provide a suitable and proper foundation for it where so undermined.

(3) Any question or difference which may arise under this section shall be determined by arbitration. A.D. 1905.

(4) If the operators make default in complying with the requirements of this section they shall make full compensation to all owners affected thereby for any loss damage penalty or costs which they may incur by reason thereof and in addition thereto they shall be liable for each default to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Provided that the operators shall not be subject to any such penalty if the court are of opinion that the case was one of emergency and that the operators complied with the requirements of this section so far as was reasonable under the circumstances or that the default in question was due to the fact that the operators were ignorant of the position of the sewer drain watercourse defence main pipe syphon electric line or work affected thereby and that that ignorance was not owing to any negligence on the part of the operators.

(5) For the purposes of this section the expression "gas company" shall mean any body or person lawfully supplying gas the expression "electric tramway company" shall mean any body or person working electric tramways under the powers of any Act or Provisional Order the expression "water company" shall mean any body or person lawfully supplying water or water power and the expression "electric supply company" shall mean any body or person supplying energy in pursuance of the Electric Lighting Acts.

27. The area within which the Company may supply power-gas (in this Order called "the area of supply") shall be the parishes of Penicuik Glencorse Lasswade and Cockpen including the burghs of Penicuik Loanhead Lasswade and Bonnyrigg all in the county of Midlothian. Area of supply.

PART III.

SUPPLY OF POWER-GAS.

28. The Company shall on being required so to do by the owner or occupier of any premises situate within the area of supply give and continue to give a supply of power-gas to such premises for any of the purposes for which the Company are authorised to supply power-gas and they shall furnish and lay any pipe that may be necessary for such purpose subject to the conditions following (that is to say) :— Obligation of Company to supply power-gas.

The cost of so much of any pipe for the supply of power-gas to any owner or occupier as may be laid upon the property

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—

of such owner or in the possession of such occupier and of so much of any such pipe as may be laid for a greater distance than thirty feet from any gas main of the Company of a capacity suitable for the supply required in addition to the existing supply thereby given although not on such property shall be defrayed by such owner or occupier and such pipes when laid shall become the property of the Company so far as laid in any street :

Every owner or occupier of premises requiring a supply of power-gas shall—

Serve a notice upon the Company at their office specifying the premises in respect of which such supply is required and the day (not being an earlier day than a reasonable time after the date of the service of such notice) upon which such supply is required to commence ; and

Enter into a written contract with the Company (if required by them so to do) to take not less than one quarter of a million cubic feet per period of thirteen weeks and to continue to receive and pay for a supply of power-gas for a period of at least two years :

Provided that the Company shall not supply power-gas for use in dwelling-houses hotels victualling houses shops places of worship infirmaries schools or museums within the district or limits of supply of any authority or company lawfully supplying gas therein.

Supply by
meter.

29. The Company may require any consumer of power-gas supplied by them to consume such power-gas by a proportional meter to be supplied and fixed by and at the expense of the Company instead of by a meter which is a legal meter within the meaning of the Sale of Gas Act 1859 and in every such case the provisions of this section shall apply in lieu of those of the said Act.

An inspector under the Sale of Gas Act 1859 may at the request of any consumer of gas supplied by the Company by a proportional meter on giving not less than twenty-four hours' written notice to the Company of his intention examine and test any proportional meter within his jurisdiction as such inspector by which power-gas is supplied to such consumer and if necessary may remove the meter for that purpose doing as little damage as may be.

If upon such examination and testing it appears that the meter measures or registers incorrectly more than three per centum in favour of the Company the same shall not be refixed or used again unless and until altered and repaired at the expense of the Company so as to measure and register correctly and the fees and expenses of

the inspector shall be borne and paid by the Company but if it appears that the meter measures or registers correctly or three per centum or less in favour of the Company then the fees and expenses of the inspector shall be borne and paid by the consumer. A.D. 1905.

A proportional meter means a meter which measures and records a constant fraction of the total quantity passing through the meter.

30. The Company shall not supply power-gas for the purpose of illumination and no power-gas supplied by the Company shall be used for that purpose. If the Company or any consumer act in contravention of the provisions of this section the Company or such consumer as the case may be shall for every such offence be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds and such penalty may be recovered by the authority or company owning the gas undertaking within whose district such contravention occurs. Power-gas not to be supplied for illumination.

31. The Company may charge and receive in respect of power-gas supplied by them such sums as may be agreed between them and the consumer being at a rate or price not exceeding threepence per one thousand cubic feet if the quantity taken by the consumer be not less than four million cubic feet per quarter of thirteen weeks and not exceeding fourpence per one thousand cubic feet if the quantity taken by the consumer be less than the above. Provided that if at any time it be proved to the satisfaction of the Board of Trade that the price of slack suitable for the purposes of the Company exceeds the price of five shillings per ton delivered at any of the stations of the Company then the Board of Trade may by order authorise an increase in the price of power-gas beyond the above maximum by one-eighth of a penny per one thousand cubic feet for every one shilling by which the price of slack per ton shall exceed the price of five shillings per ton delivered at any of the stations of the Company or by such other proportionate amount as the Board of Trade may determine and for such period in either case as the Board of Trade may fix with power to the Board to extend any such period so long as such excess of price continues: Charges for supply.

Provided that every person entitled to demand a supply of power-gas from the Company shall be entitled to such supply on the same terms as any other person who is receiving a corresponding supply for a similar purpose in like circumstances and the Company shall not in making any agreement for affording a supply of power-gas show any undue preference to any person.

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The Board of Trade may in order to ascertain the price of slack for the purposes of this section institute at the expense of the Company such inquiries as they may see fit.

Testing
place.

32. The Company shall cause to be provided at each of their generating stations in the area of supply before they shall supply power-gas from any such generating station a testing place with apparatus therein for the purpose of testing—

- (A) The thermal value of the power-gas supplied;
- (B) The composition of the power-gas supplied.

The said apparatus shall be in accordance with such rules and regulations as may from time to time be prescribed by the Board of Trade and shall be so situated and arranged as to be used for the purpose of testing the thermal value and composition of power-gas supplied by the Company and the Company shall at all times thereafter keep and maintain such testing place and apparatus in good repair and working order. All expenses incurred by the Board of Trade in prescribing such rules and regulations shall be paid by the Company.

Appointment
and powers
of power-gas
examiners.

33. The local authority of any district within the area of supply may from time to time appoint and keep appointed a competent and impartial person to be a power-gas examiner to test the power-gas at the testing place at the generating station from which the supply in such district is derived and such examiner may there test the thermal value and composition of the power-gas supplied by the Company on any or every day between the hours of eight o'clock in the morning and six o'clock in the afternoon.

Sheriff may
appoint ex-
aminer.

34. Where no such power-gas examiner is appointed or where the testing of the gas is imperfectly attended to by the local authority the sheriff on the application of consumers of the power-gas not being less than five in number may by order in writing appoint some competent and impartial person to be a power-gas examiner and such person may at any time within the hours aforesaid on producing the said order enter on the premises of the Company and there test the thermal value and composition of the power-gas supplied by them.

Mode of
testing.

35. Any test taken in pursuance of this Order shall be taken in accordance with the rules prescribed from time to time by the Board of Trade and all expenses incurred by the Board in prescribing such rules shall be paid by the Company.

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36. The Company may if they think fit on each occasion of the testing of the power-gas by the examiner be represented by some officer but such officer shall not interfere in the testing.

Representation
of Company at
testing.

37. The power-gas examiner shall on the day immediately following that on which the testing of the power-gas has been conducted make and deliver a report of the result of his testing to the local authority or sheriff by whom he was appointed and to the Company and such report shall be receivable in evidence.

Report of
examiners.

38. If it shall be proved to the satisfaction of the sheriff after hearing the parties that on any day the power-gas supplied by the Company is of less thermal value than it ought to be according to the provisions of this Order the Company shall in every such case forfeit and pay to the local authority or other persons making application for testing the power-gas such sum not exceeding ten pounds as the sheriff shall determine.

Penalty for
supplying
power-gas
deficient in
thermal
value.

39. Penalties imposed on the Company for one and the same offence by several Acts of Parliament shall not be cumulative and for such purpose this Order and the Acts incorporated herewith shall be deemed several Acts.

Penalties not
cumulative.

40. The power-gas supplied by the Company shall have a minimum heating value of one hundred and twenty-five British thermal units per cubic foot at thirty-two degrees Fahrenheit and thirty inches of mercury pressure the product of combustion being cooled to sixty degrees Fahrenheit.

Minimum
heating value
of power-gas
supplied.

41.—(1) It shall not be lawful for the Company at any time to supply power-gas—

Conditions
as to quality
of power-gas
supplied.

(A) Which contains more than fourteen per centum of carbon monoxide or such higher percentage as may be approved by a Secretary of State Provided that the approval of the Secretary of State shall be signified in writing under his hand and may be given subject to such conditions as he may think fit and may be revoked at any time; or

(B) Which does not possess a distinctive and readily perceptible smell.

(2) For any contravention of this section by the Company the Company shall be liable on summary conviction to a fine not exceeding fifty pounds.

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(3) It shall be the duty of the inspectors of factories and the inspectors of mines to enforce the provisions of this section within their districts so far as respects factories workshops and mines inspected by them respectively and such inspectors shall for this purpose have all powers and authorities conferred by section 119 of the Factory and Workshop Act 1901 and by section 41 of the Coal Mines Regulation Act 1887 and section 17 of the Metalliferous Mines Regulation Act 1872 respectively :

Provided that no proceedings shall be taken against the Company by any such inspector in respect of any contravention of the provisions of this section discovered by him on any inspection of a factory workshop or mine unless he shall have given notice in writing to the Company at their principal office of such contravention and of the nature of the contravention as soon as possible after he discovers the same.

Company not
exempted
from pro-
ceedings for
nuisance.

42. Section 29 of the Gasworks Clauses Act 1847 incorporated herewith shall for the purposes of this Order be held to apply not only to the making and supplying of power-gas but also to the making or supplying sulphate of ammonia or any bye-product or residuals of power-gas.

Byelaws by
Company.

43. The Company may from time to time make alter and repeal byelaws for preventing the abstraction waste or misuse of power-gas supplied by them and for preventing any fraudulent or wrongful interference with any fittings engines machinery or apparatus or any meters or other instruments and may attach to the breach of any such byelaws penalties not exceeding five pounds for any single offence but such byelaws shall not be of any force until they have been intimated to the consumers and have received the approval of the Board of Trade.

Entry for ex-
amination of
machinery
&c.

44. The Company may by their agents officers servants and workmen at all reasonable hours enter any lands or buildings supplied by them with power-gas for the purpose of examining repairing or replacing any engines machinery meters or other apparatus supplied or let by them making reasonable compensation to all persons injured by the exercise of the powers of this section.

No monopoly
to be created.

45. Nothing in this Order contained shall be construed as entitling the Company to any monopoly or exclusive right to supply power-gas within the area of supply.

Provision as
to general
Acts relating
to power-gas.

46. Nothing in this Order contained shall exempt the Company from the provisions of any general Act relating to the manufacture

or supply of power-gas passed before or after the commencement of this Order or from any regulations which may be made under any such general Act. A.D. 1905.

PART IV.

CAPITAL.

47. The capital of the Company shall be four hundred and fifty thousand pounds in forty-five thousand shares of ten pounds each. Capital.

48. The Company shall not issue any share created under the authority of this Order nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof. Issue of shares.

49. One-fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls and three-fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share. Calls.

50. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate or of his tutor or curator or curator bonis shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

51. Subject to the provisions of this Order the Company with the authority of three-fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Order unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share. Power to divide shares.

52. The dividends which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined Dividends on half shares.

A.D. 1905. — once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder if any in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have been payable on the entire share if the same had not been divided.

Dividend on preferred half shares to be paid out of profits of year only.

53. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Half shares to be registered and certificates issued.

54. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it.

Terms of issue to be stated in certificates.

55. The terms and conditions on which any preferred half share or deferred half share created under this Order is issued shall be stated on the certificate of each such half share.

Forfeiture of preferred half shares.

56. The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Order and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest.

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57. No preferred half share created under the authority of this Order shall be cancelled or be surrendered to the Company.

Preferred half shares not to be cancelled or surrendered.

58. The several half shares under this Order shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions herein-before contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

Half shares to be half shares in capital.

59. When any sum not less than seventy-five thousand pounds part of the capital of the Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Order in relation to the compulsory taking of land for the purposes of this Order. The deposit with the Board of Trade of a statutory declaration by two of the directors and the Secretary of the Company that the said sum of seventy-five thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof.

Portion of capital to be subscribed before compulsory powers put in force.

60. The Company may from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the share capital of the Company at the time actually issued and accepted but no part of any such sum or sums shall be borrowed until the shares in respect of which the borrowing power is exercised are issued and accepted as aforesaid and one half thereof is paid up and the Company shall have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that such shares have been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share issued and accepted has been paid on account thereof before or at the time of the issue or acceptance thereof and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

61. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created

Debenture stock.

A.D. 1905. — and issued or granted by the company under this Order or any subsequent Order or Act shall subject to the provisions of any subsequent Order or Act rank *pari passu* (without respect to the dates of the securities or of the Orders or Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

For appoint-
ment of a
judicial
factor.

62. The mortgagees or debenture holders of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages or debentures by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees or debenture holders by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

Application
of moneys.

63. All moneys raised under this Order whether by shares debenture stock or borrowing shall be applied only to the purposes of this Order to which capital is properly applicable.

PART V.

MEETINGS AND APPOINTMENT OF DIRECTORS.

First
ordinary
meeting.

64. The first ordinary meeting of the Company shall be held within six months after the commencement of this Order.

Number of
directors.

65. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than five.

Qualification
of directors.

66. The qualification of a director shall be the possession in his own right of not less than seventy-five shares.

Quorum.

67. The quorum of a meeting of directors shall be three.

First and
subsequent
directors.

68. Arthur Antony Baumann Malcolm Macnaughton and William Leonard Tod shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the commencement of this Order.

At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Order or any of them or may elect a new body of directors or directors to supply the places of those not continued in office the

directors appointed by this Order being if they continue qualified eligible for re-election. A.D. 1905.

At the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation (Scotland) Act 1845.

The several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

PART VI.

PROTECTIVE PROVISIONS.

69. For the protection of local authorities the following provisions in regard to the laying of mains pipes or other apparatus for the supply of power-gas shall unless otherwise agreed between the Company and any such local authority apply and have effect (that is to say):—

For protec-
tion of local
authorities.

(1) The Company shall not without the consent in writing of the local authority affected lay or place any mains pipes or other apparatus above the surface of any street or culvert within the area of supply nor shall they without the like consent lay or place any mains pipes or other apparatus in under along or above any part of any street within the area of supply intended for the exclusive use of foot passengers except for the purpose of connecting consumers' premises with the mains of the Company nor shall they without the like consent open break up or interfere with any sewer or drain of any such local authority :

(2) The Company shall not without the written consent of the local authority affected open or break up at any one time a greater consecutive length than two hundred yards of any street or public footpath less than one-quarter of a mile in length and in streets of greater length shall not at one time open or break up any continuous portion exceeding two hundred yards nor shall such openings or breakings up be carried out without leaving a clear space of three hundred yards

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between consecutive openings or breakings up unless with the like written consent and the Company shall efficiently fence off light and watch all portions of roads and streets affected by such operations :

- (3) The Company shall not without the written consent of the local authority affected in any way during the process of laying or placing their mains pipes and apparatus or during any subsequent alteration or repair thereof stop up impede or obstruct the public traffic passing along any street or public footpath for more of the said street or public footpath than is equivalent to one half of the width of such street or public footpath respectively :
- (4) The mains and distribution pipes of the Company shall be so laid as not to unnecessarily interfere with the sewers water gas or electric supply mains of any such local authority and shall be so constructed that the upper surface of the Company's said mains and distribution pipes shall throughout their entire length where they pass under the streets and public footpaths in the area of supply be laid at such a depth as shall be approved of by the local authority :
- (5) The consent of the local authority affected in respect of any of the matters herein-before referred to shall not be unreasonably withheld :
- (6) If any difference shall arise under this section such difference shall be settled by an arbiter to be appointed by the Board of Trade on the application of either of the parties in difference.

For protec-
tion of mine-
ral owners
within area
of supply.

70. In addition to any other provision contained in this Order the following provisions shall have effect for the protection and benefit of any mines metals and minerals and of the owner lessee and occupier thereof and of their successors lessees and assignees (in this section referred to as "the coal owner") (that is to say) :—

No coal owner shall unless otherwise agreed upon between such coal owner and the Company be liable for or be bound to make good any loss or damage which may be occasioned to the Company or to any lands buildings mains pipes or works of the Company by the working of any mines metals and minerals within the area of supply now owned leased or worked or which may hereafter be owned

leased or worked or acquired by such coal owner in such manner as to let down or otherwise disturb the surface of any works buildings or property of the Company thereon or thereunder.

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71. For the protection of the county council of the county of Midlothian (herein-after referred to as "the county council") the following provisions shall (unless otherwise agreed upon between the Company and the county council) apply and have effect (that is to say):—

For protec-
tion of
county
council of
Midlothian.

- (1) Nothing in this Order contained shall extend to lessen or control any right power or authority now vested or to be vested in the county council for altering amending or diverting any road or for altering rebuilding or repairing any bridge or the lengths of roadway adjacent thereto or any sewer drain pipe channel conduit or water or other works repairable by the county council which may be affected by the works of the Company but all such rights powers and authorities shall remain in as full force as if this Order had not been made and the county council shall not be liable to make any compensation whatever for any damage or injury to the works of the Company by the altering amending or diverting any such road or any portion thereof or by the altering rebuilding or repairing of any such bridge and lengths of roadway adjacent thereto or any sewer drain pipe channel conduit or water or other works repairable by the county council provided that such damage or injury to the works of the Company does not result from the want of reasonable care on the part of the county council and provided that in altering amending or diverting any road or any part thereof or in altering rebuilding or repairing any such bridge or lengths of roadway adjacent thereto or any sewer drain pipe channel conduit or water or other works repairable by the county council nothing shall be done to impede or interfere with the said works for any greater length of time than shall be necessary for the execution of the work and before commencing such alteration amendment rebuilding or diversion twenty-eight days' notice shall be given to the Company by the county council and the county council shall afford to the Company all necessary and reasonable temporary facilities for

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enabling them to carry on the works by this Order authorised and to continue the supply of gas during such alterations amendment diversion or rebuilding :

- (2) The Company shall on demand pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any road upon which the mains pipes and apparatus of the Company are laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of the said mains pipes or apparatus or any part or parts thereof :
- (3) The Company shall maintain the parts of any road affected by the works by this Order authorised for such period (not being more than twelve months from the date of the efficient restoration thereof) as there shall be subsidence in the surface thereof caused by such works :
- (4) All additional expenditure on capital works as defined by the Local Government (Scotland) Act 1889 at any time after the commencement of this Order reasonably incurred by the county council in consequence of the construction or laying down or by reason of the existence of any mains pipes or other apparatus or property of the Company in any road or bridge repairable by the county council which but for the passing of this Order and the powers thereby conferred upon the Company would not otherwise have arisen shall be borne and paid by the Company :
- (5) The county council shall not be liable for any damage which the Company may sustain through the acts of the county council in constructing reconstructing improving enlarging altering repairing and maintaining any road or bridge sewer drain pipe channel conduit or water or other works or through the use of steam rollers or scarifiers or the reasonable exercise of any rights functions powers or privileges vested or to be vested in the county council or through the flooding of the mains or property of the Company but the provisions of this subsection shall not apply in any case where such damage results from the want of reasonable care on the part of the county council :

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- (6) The Company shall make full compensation to the county council or any of its committees for all loss and damage which may occur to the roads streets bridges sewers drains water and gas mains apparatus and other property of the county council or such committees respectively consequent upon or arising from the exercise or use of any powers by this Order conferred upon the Company including damage due to or arising from gas escaping from the mains or other works of the Company :
- (7) The Company shall not be entitled to discharge or emit into the open air from any part of their works any steam or gas within twenty yards of any public highway :
- (8) If any bridge repairable by the county council upon or along which any mains pipes or apparatus of the Company are laid be altered or rebuilt by the county council the county council may require the Company to alter temporarily or permanently any such mains pipes or apparatus in such manner as the circumstances of the case may require :
- (9) All mains pipes or other works to be laid or constructed in along or across or in any way affecting any road bridge culvert or approach repairable by the county council shall be constructed and laid under the superintendence and to the reasonable satisfaction of the surveyor of the county council (in this section referred to as "the county surveyor") and in such position having regard to all the circumstances including the position of other pipes mains or conduits as he shall by writing under his hand direct and in accordance with plans and sections to be approved by him in writing before the commencement of the work and in the case of any bridge the county surveyor shall be entitled to direct said mains pipes and apparatus to be laid along the outer side of the wall of such bridge and the Company shall in executing any such work conform to all reasonable requirements of the county surveyor and shall pay to the county council all special expenses incurred by them in relation to such superintendence approval and requirement :
- (10) If any difference shall arise under this section between the Company and the county council or the county surveyor the matter in dispute shall be settled by an arbiter to be

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mutually appointed or failing such appointment by an engineer or other person to be appointed by the Board of Trade on the application of either party and the expense of the arbitration or reference (including the expenses of the parties) shall be borne and paid as the arbiter may direct :

(11) If the Company make default in complying with any of the requirements or restrictions of this section they shall in addition to any other compensation which they may be liable to make be liable for each default to a penalty not exceeding ten pounds and in the case of continuing default to a daily penalty not exceeding forty shillings Provided that the Company shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable under the circumstances :

(12) Any notice or demand served on the Company by the county council or any of its officers may be forwarded by post in a registered letter addressed to the Company at their principal office and the date of such service shall be deemed to be the day next but one after the posting of such notice or demand.

For protec-
tion of Edin-
burgh and
District
Water Trust.

72. For the protection of the Edinburgh and District Water Trust (in this section called "the trustees") the following provisions shall unless otherwise agreed between the Company and the trustees have effect (that is to say) :—

(1) In carrying out any of the works under this Order the Company shall not themselves alter or interfere with the existing mains branch and service pipes or other works of the trustees or the lines and levels of the same or any apparatus valves accesses or entrances connected therewith nor prevent or injuriously affect or interrupt the flow of water but in the event of any alterations or interference with such works aforesaid being required by the Company in the exercise of the powers conferred upon them by this Order such alterations or interference with such works shall be executed by the trustees and the trustees shall use every means in their power to have such alterations on or interference with their respective works executed as economically as possible

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and with all reasonable despatch and in such a manner as will enable the Company to carry out its works without undue delay. The reasonable cost of so much of such alterations or interference with such works by the trustees as is reasonably due to the operations of the Company shall be paid by the Company to the trustees within three months after a detailed account thereof shall have been rendered to the Company and should any dispute arise as to what is due by the Company the same shall be determined by arbitration in manner in this section provided and the trustees' works as so altered shall remain part of the statutory undertaking of the trustees :

- (2) In the event of any alterations on or deviations of any water mains branch or service pipes or other works and property of the trustees being necessary by or in consequence of the operations of the Company for more effectually securing and safeguarding the same or for the construction of such works as may be required for the protection of the trustees' undertaking such alterations or deviations or protection works shall be executed and completed by the trustees at the expense of the Company. Provided that no such works intended to be executed at the expense of the Company shall be commenced without giving at least fourteen days' written notice or if the circumstances are urgent then such notice as the circumstances permit to the Company with the particulars including plans and sections of the works intended and the estimated cost thereof and the same shall be executed as economically as possible and so as to interfere as little as possible with the works of the Company and the Company may elect to vary or alter their works so as to render unnecessary or lessen the proposed operations on the part of the trustees and require the intended alterations or deviations to be correspondingly varied :
- (3) The trustees shall at all times have right of access to their existing and future mains branch and service pipes and works connected therewith and to any protective works which may be constructed as herein provided for the purpose of the examination cleansing and renewal repair and duplication enlargement alteration and maintenance

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of the same and for making any additional works which they may consider necessary or may see fit or may be hereafter authorised to construct :

- (4) The Company shall before proceeding with any works or operations which interfere with or affect any of the mains branch and service pipes and other works of the trustees give at least one month's previous written notice of the intention of the Company so to do to the clerk of the trustees and shall submit plans and sections showing the intended operations which plans and sections shall so far as any of the mains or branch pipes or other works of the trustees shall or may be interfered with or affected be subject to the reasonable approval of the engineer of the trustees and the Company shall carry out such works only in accordance with the plans so approved :
- (5) All additional expenditure which at any time after the commencement of this Order may be reasonably incurred by the trustees in consequence of the construction or laying down or by reason of the existence of any mains pipes or other apparatus of the Company in any road street or bridge within the area of supply of the trustees which but for the passing of this Order and the exercise of the powers conferred on the Company would not have otherwise arisen shall be borne and paid by the Company :
- (6) The trustees shall not be liable for any loss or damage which the Company may sustain by the exercise in a reasonable manner by such trustees of any statutory powers possessed by them for the time being for the management inspection repair maintenance and renewal of their works or conferred by this Order or in connexion with the construction and maintenance at any time of new and additional mains branch and service pipes and other works which may be found necessary for the purposes of their undertaking but the provisions of this section shall not apply in any case where such damage results from the wilful act or wilful default or the want of reasonable care on the part of the trustees :
- (7) The Company on being so required shall free of charge supply to the trustees a copy of so much of the map and sections to be made and kept by them under the

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provisions of this Order as relates to any district of the Company's area of supply within which are laid down or constructed or are authorised to be laid down or constructed water mains and pipes and sewers and drains of the trustees and shall once in every year on being so required cause the said copy to be duly corrected to date :

- (8) If any difference shall arise at any time between the Company and the trustees or their respective engineers with respect to any of the matters referred to in or arising out of this section or with respect to the execution of any works such difference shall be referred to an arbiter to be nominated by the sheriff on the application of either of the said parties and the decision of the said arbiter in all such matters so referred shall be final it being however specially agreed that in reference to the fifteen inch and larger mains of the trustees and the apparatus and valves connected therewith the engineer of the trustees shall be entitled absolutely to decide the manner in which such mains shall be altered or interfered with and in these cases the said arbiter shall failing agreement decide whether and to what extent such alteration or interference was due to the operations of the Company and the amount reasonably chargeable against the Company in respect thereof The costs of the arbitration including the expenses of the parties shall be borne and paid as the arbiter may direct.

73. For the protection of the North British Railway Company (herein-after referred to as "the railway company") the following provisions shall unless otherwise agreed between the Company and the railway company apply and have effect (that is to say):—

For protec-
tion of North
British
Railway
Company.

- (1) The Company shall not take or acquire by compulsion under the provisions of this Order any railways lands or property belonging to the railway company or in which the railway company are interested or any rights in over or under any such railways lands or property except the servitudes mentioned in the section of this Order of which the marginal note is "Power to lay mains and acquire servitudes":

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- (2) The Company shall not under the powers of this Order lay down any pipe or other apparatus in upon over or under or in any way interfere with any railway or land or property belonging to the railway company or in which the railway company are interested except in virtue of the servitudes mentioned in the said section of this Order if acquired by the Company under the provisions of the said section and except in streets or roads passing by bridges over or under any railway and other streets or roads in which the railway company may be interested and subject to the provisions of this Order the Company may lay down mains pipes and other apparatus in streets and roads passing by bridges over or under any railway and other streets and roads in which the railway company may be interested and also in the case of bridges over any railway along the outer walls of such bridges where for any reason it is not practicable to lay the mains pipes or other apparatus in the roadway of such bridges :
- (3) Where it is proposed to lay down mains pipes and other apparatus across the property of the railway company at any point where there is no existing bridge either over or under the railway the Company shall construct and maintain a suitable culvert underneath the railway with suitable manholes at either end outside the boundary of the property of the railway company to carry the said mains pipes and other apparatus below the railway at the said points :
- (4) Notwithstanding anything shown upon the deposited plans the width of the servitudes mentioned in the said section of this Order in so far as such servitudes are over or upon any railways lands or property of the railway company at level crossings shall not exceed the widths of the culverts referred to herein or in the case of streets or roads passing by bridges over or under any railway or other streets or roads in which the railway company may be interested shall not exceed ten feet :
- (5) In constructing laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes wires apparatus or other works in the exercise of the

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powers contained in this Order upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the railway company or the bridges over or under or any level crossings over any railway of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the railway company and only according to such plans and in such position and manner as shall be previously submitted to and reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner in this section provided :

- (6) All such works shall be done by and at the expense of the Company who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the railway company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operation of the Company Provided always that should the railway company elect so to do where any mains pipes wires or apparatus require to be laid under or across any railway or any level crossing or upon any bridge over the railway they may themselves lay the same at the costs charges and expenses of the Company as the same shall be determined by the engineer of the railway company :
- (7) If any addition or alteration is in consequence of the exercise of the powers contained in this Order reasonably required on any bridge or other work belonging to the railway company upon across under or adjoining which it is proposed to lay any mains pipes wires apparatus or other works such addition or alteration shall be carried out by the railway company at the expense of the Company :
- (8) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings lands or property and so as to cause no interruption to the passing or conduct of traffic over such railways :

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- (9) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works or operations aforesaid or the bursting leakage or failure of any such mains pipes wires apparatus or works in under or near to any railway bridge level crossing embankment cutting land or property of the railway company the Company shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner in this section provided :
- (10) If the railway company at any time or times hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges level crossings or other works upon across over or under which any of the works of the Company may have been constructed or laid the railway company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager and in case of emergency of which the engineer of the railway company shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Company and without unduly interfering with the supply of power-gas by the Company :
- (11) Nothing in this Order contained or that may follow hereupon shall prevent the railway company at any future time from altering improving or extending any of their railways or works or property and the Company shall pay to the railway company any additional expenses the railway company may reasonably incur or be put to in carrying out any such alteration improvement or extension by reason of the making or maintaining upon any property belonging to the railway company of the Company's works or by any

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operations of the Company upon or with regard to any such property nor shall anything in this Order entitle the Company to any compensation for any damage occasioned by such operations of the railway company upon or with regard to their own property unless such damage shall have been occasioned by the default or neglect of the railway company :

- (12) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof or as to the cost of such works or as to the reasonableness of any requirement of the engineer of the railway company shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them. The costs of the arbitration including the expenses of the parties shall be borne and paid as the arbiter may direct.

PART VII.

MISCELLANEOUS.

74. Whenever the Company make default in supplying power-gas to any owner or occupier of premises to whom they may be and are required to supply power-gas in accordance with the foregoing provisions of this Order they shall be liable to such owner or occupier in respect of each default to a penalty not exceeding forty shillings for each day on which the default occurs :

Penalty for failure to supply.

Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of two hundred pounds. And provided also that in no case shall any penalty be inflicted in respect of any default if the Court are of opinion that the default was caused by inevitable accident or *damno fatali* or was of so slight and unimportant a character as not materially to affect the value of the supply.

75.—(1) The Board of Trade at any time after the expiration of a period of ten years from the commencement of this Order on

Revision of prices.

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(2) The Board of Trade may if they think fit on the like application make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision the Board of Trade may modify the provisions of this Order as to price so far as may be necessary to carry out their decisions on the revision.

Accounts
and audit.

76.—(1) The Company shall keep full true and plain accounts of their receipts and expenditure in respect of the undertaking prepared in a form approved by the Board of Trade and shall at least once in every year cause to be prepared a true balance sheet prepared in a form approved by the Board of Trade showing the capital assets property and liabilities of the Company and the said accounts and balance sheet shall in or within one month before each ordinary meeting be examined and audited in such manner and subject to such regulations as the Board of Trade may prescribe and shall be presented together with the report or certificate of the auditor to such ordinary meeting.

(2) A copy of the accounts and balance sheet for each financial year together with the report or certificate of the auditor shall within three months after the expiration of such year be forwarded by the Company to the county council of the county of Midlothian and the town council of each burgh within the area of supply and any such council shall be entitled to make a representation with respect to such accounts or balance sheet to the Board of Trade and the Board may thereupon require the Company to make such alterations therein as they may deem necessary for the rectification thereof. The Company shall keep copies of such accounts and balance sheet at their office and sell the same to any applicant at a price not exceeding one shilling for each such copy. If the Company make default in complying with the provisions of this subsection they shall be liable to a penalty not exceeding forty shillings for each day during which such default continues.

Division of
surplus pro-
fits.

77.—(1) If in any financial year the profits of the Company shall be more than sufficient to pay a dividend at the rate of ten pounds per centum per annum on the share capital for the time being of the Company one third of the surplus shall be applied in forming a reserve fund subject and according to the provisions

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herein-after contained one third shall be applied in making a rateable reduction of the charges for gas supplied to consumers in the financial year in which the surplus is earned and the remaining one third of the surplus shall be paid as a dividend upon the share capital additional to the ten pounds per centum per annum above referred to but if and when such reserve fund shall amount to the sum of one hundred thousand pounds then the surplus profits shall be applied as to one half in reduction of the charges to consumers as aforesaid and as to the other half in payment of such additional dividend upon the share capital as is herein-before mentioned in making such reduction.

(2) The amount of reduction to which each consumer may be so entitled is in this section referred to as a rebate and any consumer who has paid his account for any financial year or any part of such year before the amount of his rebate is ascertained may recover from the Company the amount of his rebate by action in the sheriff court.

78.—(1) A reserve fund under this Order shall be formed by investing the moneys appropriated thereto and the resulting income of such investments in any securities in which trustees are for the time being empowered by law to invest trust moneys and accumulating the same at compound interest until the fund amounts to one hundred thousand pounds.

Reserve
fund.

(2) The reserve fund so formed shall be applicable to meet any deficiency at any time occurring in the income of the Company from the undertaking or to meet any extraordinary claim or demand at any time arising against the Company in respect of the undertaking and so that if the fund is at any time reduced below the sum of one hundred thousand pounds it may again be restored to that sum and so from time to time as often as such reduction happens.

(3) So long as the reserve fund amounts to or exceeds one hundred thousand pounds the resulting income thereof shall be applied to any of the general purposes of the Company to which the profits of the Company's undertaking are applicable.

79. The Company may erect and maintain upon the lands for the time being belonging to or leased by them cottages or dwelling-houses suitable for their officers workmen and servants.

Dwelling-
houses for
employees.

80. The Company and the proprietors or trustees of any water-works or other body or person may enter into and carry into effect contracts agreements and arrangements for and with respect to

Agreements
with regard
to supply of
water.

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the supply of water to the Company for the purposes of their undertaking by any such proprietors trustees body or person.

Security to
be given by
consumers.

81. Any person requiring a supply of power-gas shall give to the Company security for any moneys payable by such person in respect of the cost of any pipe or main which under the provisions of this Order is to be borne by such person and (if required to do so at any time during the continuance of the supply) security for the payment of all moneys which may become due to the Company in respect of the power-gas to be supplied to them under any contract and if such person fails within seven days after being required in writing by the Company to do so to give such security or if the same has been insufficient or invalid the Company may discontinue to supply power-gas to such person so long as such failure continues. Provided that where any such security is given by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited for every six months during which the same remains in their hands.

Map of area
of supply to
be made.

82.—(1) The Company shall forthwith after commencing to supply power-gas under this Order cause a map to be made of the area of supply and shall cause to be marked thereon the line and the depth below the surface of all their then existing mains and other underground works and shall once in every year cause that map to be duly corrected so as to show the then existing underground works. The Company shall also if so required by the Board of Trade or the Postmaster-General cause to be made sections showing the level of all their existing mains and underground works. The said map and sections shall be made on such scale or scales as the Board of Trade prescribe.

(2) Every map and section so made or corrected or a copy thereof marked with the date when it was so made or last corrected shall be kept by the Company at their principal office within the area of supply and shall at all reasonable times be open to the inspection of all applicants and those applicants may take copies of it or any part thereof. The Company may demand and take from every such applicant such fee not exceeding one shilling for each inspection of the map section or copy and such further fee not exceeding five shillings for each copy of it or any part thereof taken by the applicant as they prescribe.

(3) The Company shall if required by the Board of Trade or the Postmaster-General or by any local authority in the area of supply supply to them or him free of charge a copy of any such

map or section (but in the case of a local authority only so far as relates to the district of such authority) and cause that copy to be duly corrected so as to agree with the original or originals thereof as kept for the time being at the office of the Company. A.D. 1905.

(4) If the Company fail to comply with any of the requirements of this section they shall for each default be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding two pounds.

83. All charges rates and sums payable to or by the Company and all penalties under this Order or any byelaw made under this Order may be recovered either before a court of summary jurisdiction in manner provided by the Summary Jurisdiction (Scotland) Acts or by action in any court of competent jurisdiction. Provided that charges rates and sums other than penalties or costs recoverable along with penalties shall only be recoverable as civil debts. Recovery of charges &c.

84. The Company shall be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants by reason or in consequence of any of the Company's works and shall save harmless all corporations local authorities companies and persons their officers and servants from all damages and costs in respect of such accidents damages and injuries. Company to be responsible for all damages.

85. If within two years from the first day of January one thousand nine hundred and six the Company have not substantially commenced their works for the purpose of carrying out their powers under this Order or if within four years after the said first day of January the Company have not erected a generating station or generating stations and have not laid down distributing mains sufficient in the opinion of the Board of Trade and are not in a position to supply power-gas therefrom the Board of Trade may at any time thereafter order that any of the powers of the Company under this Order shall cease as to the whole or any part of the area of supply and on any such order being made all or any of those powers shall cease accordingly. Cesser of powers.

86. If owing to the abandonment of the undertaking or any part thereof any mains pipes or apparatus laid under the powers of this Order under any street or bridge shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade the said Board may if they think fit by order sanction the removal of such mains pipes or apparatus and the authority having the control of the said street or bridge (in As to removal of mains &c. after abandonment.

A.D. 1905. this section referred to as "the road authority") may (subject however to any agreement between the road authority and the Company providing for the removal of such mains pipes or apparatus by the Company) forthwith remove the same with all reasonable care and the Company shall pay to the road authority the reasonable cost of such removal and of the reinstatement of the said street or bridge in which the same was laid and if the Company fail to pay such cost within one month after the ascertainment of and application for the same the road authority may without any previous notice to the Company (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the mains pipes or apparatus so removed either by public auction or private sale and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of the said street or bridge and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the road authority to the Company. Provided that the Company shall before removing said mains pipes and apparatus under this section deposit with the county council of the county of Midlothian the estimated cost of such removal.

If any difference arise between the Company and the road authority under this section the same shall be settled by an arbiter to be appointed by the Board of Trade on the application of either of the parties in difference.

Agreements.

87. The Company and any person to whom the Company are entitled to give a supply of power-gas may enter into and carry into effect contracts agreements and arrangements for and with respect to all or any of the following matters (that is to say):—

The supply by the Company of power-gas and of plant fittings or materials of any kind and machinery and appliances for utilising the same :

The prices to be charged for and the terms and conditions of such supply :

The execution or exercise by any such person on behalf of the Company or by the Company on behalf of such person of any works or powers in reference to the supply or use of power-gas within the area of supply.

Acquisition of minerals.

88. The Company may acquire or take on lease and any person entitled so to do may sell convey or lease any mines and

workings of coal iron stone and minerals together with the shafts buildings and plant connected therewith and it shall be lawful for the Company to work such mines and to sell or otherwise dispose of the products and any waters derived therefrom and to use any coal or waters so derived for consumption or use at any generating station or stations of the Company.

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89. Notwithstanding anything in this Order or in any Act or Acts incorporated herewith the Company may out of any money by this Order authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him respectively from the respective times of such payments until the expiration of four years from the first day of January one thousand nine hundred and six or such less period as the directors may determine subject to the following conditions (that is to say) :—

As to pay-
ment of
interest out
of capital.

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that one hundred thousand pounds at least of the share capital by this Order authorised has been actually issued and accepted and is held by shareholders who or whose executors administrators successors or assigns are legally liable for the same :

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(C) The aggregate amount to be so paid for interest shall not exceed twenty thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :

(D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares which may be issued by or on behalf of the Company prior to the expiration of the period for which such interest shall be payable under the provisions of this Order and in every certificate of shares :

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(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which such interest has been paid in pursuance of this section.

Save as herein-before set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

Costs of
Order.

90. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Order.

LANDS FOR POWER STATIONS.

MAURICEWOOD SITE.

(1) Certain lands and property situate in the parish of Glencorse in the county of Midlothian belonging or reputed to belong to James Haldane C.A. and Findlay Blair Anderson C.A. both of 24 St. Andrew Square Edinburgh as Trustees under the Penicuik Trust Estate Act 1883 containing 10 acres or thereabouts bounded as follows (that is to say) On the south by the incline leading from Mauricewood Colliery to the Glencorse extension of the North British Railway Edinburgh Loanhead and Roslin Branch Line commencing at the point where the said incline crosses the road leading from Mauricewood Mansion House to the public road leading from Edinburgh to Penicuik and extending along the eastern side of said incline in an easterly direction for a distance of 110 yards or thereabouts thence on the south-east by a portion of the farm of Greenlaw Mains belonging to said Trustees along which said lands extend in a northerly direction for a distance of 200 yards or thereabouts thence on the north also by a portion of the said farm of Greenlaw Mains along which said lands extend in a westerly direction for a distance of 266 yards or thereabouts thence on the west also by a portion of said farm along which boundary said lands extend in a southerly direction for a distance of 100 yards or thereabouts and thence on the south-west by the said road leading from Mauricewood Mansion House to the public road leading from Edinburgh to Penicuik along which said lands extend for a distance of 186 yards or thereabouts.

BURGHLEE SITE.

A.D. 1905.

(2) Certain lands and property situate in the parish of Lasswade county of Midlothian belonging or reputed to belong to the said James Haldane and Findlay Blair Anderson as Trustees foresaid containing 10 acres or thereabouts bounded as follows (that is to say) On the east partly by a portion of the farm of Burghlee Mains belonging to the said Penicuik Trustees and partly by ground belonging to them and leased to the Shotts Iron Company Limited along which boundary said lands extend in a northerly direction for a distance of 293 yards or thereabouts commencing at a point in the boundary between the Dryden Estate and the Penicuik Estate at a distance of 254 yards or thereabouts measured in a south-westerly direction from the Burghlee Coal Pit thence on the north by the road leading from the Burghlee Pit to The Loan along which said lands extend in a north-easterly direction for a distance of 190 yards or thereabouts thence on the west by another portion of the said farm of Burghlee Mains along which said lands extend in a southerly direction for a distance of 366 yards or thereabouts and thence on the south by the Estate of Dryden along which said lands extend in a south-westerly direction 160 yards or thereabouts.

WHITEHILL SITE.

(3) Certain lands and property situate in the parish of Lasswade county of Midlothian belonging or reputed to belong to Robert George Wardlaw Ramsay of Whitehill and Tillicoultry containing 10 acres or thereabouts bounded as follows (that is to say) On the east by the railway siding leading to the Whitehill Collieries from the North British Hardengreen and Peebles Railway Line along which eastern boundary said lands extend 180 yards or thereabouts commencing at a point on the west side of the said railway siding distant 500 yards or thereabouts measured in a north-westerly direction from the Whitehill Pit thence on the north-west by the North British Hardengreen and Peebles Railway Line along which said lands extend in a south-westerly direction for a distance of 360 yards or thereabouts thence on the south-west by other ground belonging to the said Robert George Wardlaw Ramsay along which said lands extend in a south-easterly direction for a distance of 166 yards or thereabouts and thence on the south-east also by ground belonging to the said Robert George Wardlaw Ramsay along which said lands extend in a north-easterly direction for a distance of 266 yards or thereabouts

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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